

CV-24-003417 LVNV FUNDING LLC vs SMITH, TANNER – Defendant's Motion to Set Aside Default Judgment and for Leave to Defend Action – DENIED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: It appears that Defendant relies on the wrong code section in seeking relief. Code Civ. Proc. § 473.5 applies in the situation where there has been proper service of summons but the defendant nevertheless did not find out about the action in time to defend. Here, Defendant argues that proper service was not accomplished, as he denies receipt of process despite the registered process server's attestation that Defendant was personally served. In addition, Defendant failed to submit a proposed answer with his moving papers, which is required by Code Civ. Proc. § 473.5(b). Under the circumstances, it appears that Defendant's options for relief are limited to demonstrating that service was never accomplished, making the judgment void under Code Civ. Proc. § 473(d), or that the judgment was obtained by extrinsic mistake or fraud which prevented him from being able to represent his interests in the matter while it was pending, thus warranting exercise of the Court's equitable powers to set the judgment aside. Where a defendant challenges the court's personal jurisdiction on the ground of improper service, the burden is on the plaintiff to prove the existence of jurisdiction due to effective service. (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) However, a filed proof of service by a registered process server that complies with the statutory standards creates a rebuttable presumption that service was proper. (Evid. Code § 647; Floveyor International, Ltd. v. Superior Court (Shick Tube-Veyor Corp.) (1997) 59 Cal.App.4th 789, 795; Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1441-1442.) Here, Defendant presents only his own self-serving and uncorroborated declaration to support his assertion that service was never accomplished; this is insufficient to overcome the presumption of valid service in this instance.

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